

An Act

ENROLLED SENATE
BILL NO. 444

By: Rader of the Senate

and

Caldwell (Chad) of the
House

An Act relating to controlled dangerous substances; amending 63 O.S. 2021, Sections 2-315 and 2-508, which relate to destruction of controlled dangerous substances and disposition of seized property; modifying and removing requirements and procedures related to destruction; modifying terminology; requiring compliance with federal regulation; allowing ultimate user to submit own drugs for destruction under certain conditions; permitting destruction of decedent's prescribed drugs under certain conditions; authorizing qualified hospice program to destroy decedent's prescribed drugs under certain conditions; requiring completion and submission of certain form; defining terms; removing requirement for certain destruction site; updating statutory language; updating statutory references; and providing an effective date.

SUBJECT: Destruction of controlled dangerous substances

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 63 O.S. 2021, Section 2-315, is amended to read as follows:

Section 2-315. A. Except as otherwise provided by law, any person required to obtain an annual registration pursuant to Section 2-302 of this title, or any group home, or residential care home as

defined by Section 1-820 of this title shall ~~submit for destruction~~ destroy all controlled dangerous substances which are out of date, ~~which are~~ unwanted, unused, or ~~which are~~ abandoned by their owner at their facility due to death or other circumstances.

B. All controlled dangerous substances described in subsection A of this section shall be ~~submitted to the Oklahoma City laboratory of the Oklahoma State Bureau of Investigation, along with all required information on forms provided by the Oklahoma State Bureau of Investigation, to the federal Drug Enforcement Administration, to a duly registered reverse distributor, to the original registered supplier or their registered agent, to a duly registered retail pharmacy, or to a hospital or clinic with an on-site pharmacy~~ destroyed pursuant to the rules set forth in Part 1317 of Title 21 of the Code of Federal Regulations 21 C.F.R., Part 1317. When any such substance is transported by private contract or common carrier or United States Postal Service for the purpose of destruction, the sender shall require a receipt from such private contract or common carrier or United States Postal Service, and such receipt shall be retained as a permanent record by the sender.

C. ~~Controlled dangerous substances submitted to the Oklahoma State Bureau of Investigation pursuant to the provisions of this section shall be destroyed pursuant to the procedures provided in subsection A of Section 2-508 of this title.~~

Controlled dangerous substances submitted to any distributors, reverse distributors, or their original registered suppliers pursuant to the provisions of this section shall be destroyed ~~by incineration so as to make the substance absolutely unusable for human purposes~~ in accordance with 21 C.F.R., Part 1317. An official record listing the property destroyed, the location of destruction and disposal, and the name and title of the person supervising the destruction and disposal shall be submitted to the Oklahoma State Bureau of Narcotics and Dangerous Drugs Control and the Diversion Control Division of the federal Drug Enforcement Administration ~~office located nearest the destruction site.~~

D. The Office of the Chief Medical Examiner is hereby authorized, in accordance with 21 C.F.R., Part 1317, to perform on-site ~~incineration~~ destruction of all controlled dangerous substances which are obtained in the discharge of the official duties of the

Chief Medical Examiner. Any record relating to destruction of a controlled dangerous substance shall be maintained as required by the state or federal government and shall be available for inspection by appropriate state or federal government regulatory agencies.

E. 1. An ultimate user who has lawfully obtained a controlled dangerous substance in accordance with state and federal law may, without being registered under Section 2-302 of this title, deliver the controlled dangerous substance to an authorized person for the purpose of destruction of the controlled dangerous substance under the conditions provided by 21 U.S.C., Section 822(g) (1).

2. If a person dies while lawfully in possession of a controlled dangerous substance for personal use, any person lawfully entitled to dispose of the decedent's property may deliver the controlled dangerous substance to another person for the purpose of destruction under the conditions provided by 21 U.S.C., Section 822(g) (4).

3. a. In the case of a decedent who was receiving hospice care at the time of death, an employee of a qualified hospice program, acting within the scope of his or her employment, may handle, without being registered under Section 2-302 of this title, any controlled dangerous substance that was lawfully dispensed to the decedent prior to death, under the conditions provided by 21 U.S.C., Section 822(g) (5). Such employee shall, under penalty of perjury, complete, sign, and submit to the Oklahoma State Bureau of Narcotics and Dangerous Drugs Control a form to be prescribed by the Bureau. The form shall also be signed by a witness who is either a second employee of the qualified hospice program or a family member of the decedent.

b. As used in this paragraph:

(1) "employee of a qualified hospice program" has the same meaning as provided by 21 U.S.C., Section 822(g) (5) (B), and

(2) "qualified hospice program" means a qualified hospice program as defined in 21 U.S.C., Section 822(g) (5) (B) that is licensed under the Oklahoma Hospice Licensing Act and registered under Section 2-302 of this title.

F. This section shall constitute a part of the Uniform Controlled Dangerous Substances Act.

SECTION 2. AMENDATORY 63 O.S. 2021, Section 2-508, is amended to read as follows:

Section 2-508. A. Except as otherwise provided, all property described in paragraphs 1 and 2 of subsection A of Section 2-503 of this title which is seized or surrendered pursuant to the provisions of the Uniform Controlled Dangerous Substances Act shall be destroyed pursuant to 21 C.F.R., Part 1317. The destruction shall be done by or at the direction of the Oklahoma State Bureau of Narcotics and Dangerous Drugs Control (OSBNDD), who shall have the discretion prior to destruction to preserve samples of the substance for testing. ~~In any county with a population of four hundred thousand (400,000) or more according to the latest Federal Decennial Census, there shall be a located site, approved by the OSBNDD, for the destruction of the property.~~ Any such property submitted to the OSBNDD which it deems to be of use for investigative training, ~~or~~ educational, ~~or~~ analytical purposes may be retained by the OSBNDD in lieu of destruction.

B. 1. With respect to controlled dangerous substances seized or surrendered pursuant to the provisions of the Uniform Controlled Dangerous Substances Act, municipal police departments, sheriffs, the Oklahoma State Bureau of Narcotics and Dangerous Drugs Control ~~Commission~~, the Oklahoma Highway Patrol, and the Oklahoma State Bureau of Investigation shall have the authority to destroy seized controlled dangerous substances when the amount seized in a single incident exceeds ten (10) pounds. The destroying agency shall:

- a. photograph the seized substance with identifying case numbers or other means of identification,
- b. prepare a report describing the seized substance prior to the destruction,

- c. retain at least one (1) pound of the substance randomly selected from the seized substance for the purpose of evidence, and
- d. obtain and retain samples of the substance from enough containers, bales, bricks, or other units of substance seized to establish the presence of a weight of the substance necessary to establish a violation of the Trafficking in Illegal Drugs Act pursuant to subsection C of Section 2-415 of this title, if such a weight is present. If such a weight is not present, samples of the substance from each container, bale, brick, or other unit of substance seized shall be taken. Each sample taken pursuant to this section shall be large enough for the destroying agency and the defendant or suspect to have an independent test performed on the substance for purposes of identification.

2. If a defendant or suspect is known to the destroying agency, the destroying agency shall give at least seven (7) days' written notice to the defendant, suspect, or counsel for the defendant or suspect of:

- a. the date, the time, and the place where the photographing will take place and notice of the right to attend the photographing, and
- b. the right to obtain samples of the controlled dangerous substance for independent testing and use as evidence.

3. The written notice shall also inform the defendant, suspect, or counsel for the defendant or suspect that the destroying agency must be notified in writing within seven (7) days from receipt of the notice of the intent of the suspect or defendant to obtain random samples and make arrangements for the taking of samples. The samples for the defendant or suspect must be taken by a person licensed by the federal Drug Enforcement Administration. If the defendant or counsel for the defendant fails to notify the destroying agency in writing of an intent to obtain samples and

fails to make arrangements for the taking of samples, a sample taken pursuant to subparagraph d of paragraph 1 of this subsection shall be made available upon request of the defendant or suspect.

The representative samples, ~~the~~ photographs, ~~the~~ reports, and ~~the~~ records made under this section and properly identified shall be admissible in any court or administrative proceeding for any purposes for which the seized substance itself would have been admissible.

C. All other property not otherwise provided for in the Uniform Controlled Dangerous Substances Act which has come into the possession of the Oklahoma State Bureau of Narcotics and Dangerous Drugs Control, the Department of Public Safety, the Oklahoma State Bureau of Investigation, the Alcoholic Beverage Laws Enforcement Commission, the Department of Corrections, the Office of the Attorney General, or a district attorney may be disposed of by order of the district court when no longer needed in connection with any litigation. If the owner of the property is unknown to the agency or district attorney, the agency or district attorney shall hold the property for at least six (6) months prior to filing a petition for disposal with the district court except for laboratory equipment which may be forfeited when no longer needed in connection with litigation, unless the property is perishable. The ~~Director~~ director or ~~Commissioner~~ commissioner of the agency, ~~the~~ Attorney General, or district attorney shall file a petition in the district court of Oklahoma County or in the case of a district attorney, the petition shall be filed in a county within the jurisdiction of the district attorney requesting the authority to:

1. Conduct a sale of the property at a public auction or use an Internet auction, which may include online bidding; or

2. Convert title of the property to the Oklahoma State Bureau of Narcotics and Dangerous Drugs Control, the Department of Public Safety, the Oklahoma State Bureau of Investigation, the Alcoholic Beverage Laws Enforcement Commission, the Department of Corrections, the Office of the Attorney General, or to the district attorney's office for the purposes provided for in subsection J, K, L or L of this section.

The ~~Director~~ director, ~~Commissioner~~ commissioner, Attorney General or district attorney shall attach to the petition:

- a. a list describing the property, including all identifying numbers and marks, if any,
- b. the date the property came into the possession of the agency or district attorney, and
- c. the name and address of the owner, if known.

For any item having an apparent value in excess of One Hundred Dollars (\$100.00), but less than Five Hundred Dollars (\$500.00), the notice of the hearing of the petition for the sale of the property, except laboratory equipment used in the processing, manufacturing, or compounding of controlled dangerous substances in violation of the provisions of the Uniform Controlled Dangerous Substances Act, shall be given to every known owner, as set forth in the petition, by first-class mail to the last-known address of the owner at least ten (10) days prior to the date of the hearing. An affidavit of notice being sent shall be filed with the court by a representative of the agency, the ~~Director~~ director or ~~Commissioner~~ commissioner of the agency, ~~the~~ Attorney General, or district attorney. For items in excess of Five Hundred Dollars (\$500.00), a notice of the hearing of the petition for the sale of ~~said~~ such property shall be delivered to every known owner as set forth in the petition by certified mail. Notice of a hearing on a petition for forfeiture or sale of laboratory equipment used in the processing, manufacturing, or compounding of controlled dangerous substances in violation of the Uniform Controlled Dangerous Substances Act shall not be required.

The notice shall contain a brief description of the property, and the location and date of the hearing. In addition, notice of the hearing shall be posted in three public places in the county, one such place being the county courthouse at the regular place assigned for the posting of legal notices. At the hearing, if no owner appears and establishes ownership of the property, the court may enter an order authorizing the ~~Director~~ director, ~~Commissioner~~ commissioner, Attorney General, or district attorney to donate the property pursuant to subsection J, K, or L of this section~~7~~; to sell the property at a public auction~~7~~ including an Internet auction,

which may include online bidding, to the highest bidder⁷; or to convert title of the property to the Oklahoma State Bureau of Narcotics and Dangerous Drugs Control, the Department of Public Safety, the Oklahoma State Bureau of Investigation, the Alcoholic Beverage Laws Enforcement Commission, the Department of Corrections, or the Office of the Attorney General for the purposes provided for in subsection J, K, or L of this section after at least ten (10) ~~days~~ of days' notice has been given by publication in one issue of a legal newspaper of the county. If the property is offered for sale at public auction, including an Internet auction, and no bid is received that exceeds fifty percent (50%) of the value of the property, such value to be announced prior to the sale, the ~~Director~~ director, ~~Commissioner~~ commissioner, Attorney General, or district attorney may refuse to sell the item pursuant to any bid received. The ~~Director~~ director, ~~Commissioner~~ commissioner, Attorney General, or district attorney shall make a return of the sale and, when confirmed by the court, the order confirming the sale shall vest in the purchaser title to the property so purchased.

D. The money received from the sale of property by the Oklahoma State Bureau of Narcotics and Dangerous Drugs Control shall be used for general drug enforcement purposes. These funds shall be transferred to the Bureau of Narcotics Revolving Fund established pursuant to Section 2-107 of this title or in the case of a district attorney, the revolving fund provided for in paragraph 3 of subsection L of Section 2-506 of this title.

E. At the request of the Department of Public Safety, the district attorney or a designee of the district attorney may conduct any forfeiture proceedings as described in Section 2-503 of this title on any property subject to forfeiture as described in subsection A, B, or C of Section 2-503 of this title. The money received from the sale of property by the Department of Public Safety shall be deposited in the Department of Public Safety Restricted Revolving Fund and shall be expended for law enforcement purposes.

F. The money received from the sale of property by the Alcoholic Beverage Laws Enforcement Commission shall be deposited in the General Revenue Fund of the state.

G. The money received from the sale of property from the Oklahoma State Bureau of Investigation shall be deposited in the OSBI Revolving Fund and shall be expended for law enforcement purposes.

H. The Director of the Department of Corrections shall make a return of the sale and when confirmed by the court, the order confirming the sale shall vest in the purchaser title to the property so purchased. Twenty-five percent (25%) of the money received from the sale shall be disbursed to a revolving fund in the office of the county treasurer of the county wherein the property was seized, ~~said~~ such fund to be used as a revolving fund solely for enforcement of controlled dangerous substances laws, drug abuse prevention, and drug abuse education. The remaining seventy-five percent (75%) shall be deposited in the Department of Corrections Revolving Fund to be expended for equipment for probation and parole officers and correctional officers.

I. The money received from the sale of property from the Office of the Attorney General shall be deposited in the ~~Attorney General~~ Attorney General's Law Enforcement Revolving Fund and shall be expended for law enforcement purposes. The Office of the Attorney General may enter into agreements with municipal, county, or state agencies to return to such an agency a percentage of proceeds of the sale of any property seized by the agency and forfeited under the provisions of this section.

J. Any property, ~~including~~ including, but not limited to, uncontaminated laboratory equipment used in the processing, manufacturing, or compounding of controlled dangerous substances in violation of the provisions of the Uniform Controlled Dangerous Substances Act, upon a court order, may be donated for classroom or laboratory use by the Oklahoma State Bureau of Narcotics and Dangerous Drugs Control, Department of Public Safety, district attorney, the Alcoholic Beverage Laws Enforcement Commission, the Department of Corrections, or the Office of the Attorney General to any public secondary school or technology center school in this state or any institution of higher education within The Oklahoma State System of Higher Education.

K. Any vehicle or firearm which has come into the possession and title vested in the Oklahoma State Bureau of Narcotics and

Dangerous Drugs Control, the Department of Public Safety, the Oklahoma State Bureau of Investigation, the Office of the Attorney General, or a district attorney, may be transferred, donated, or offered for lease to any sheriff's office, tribal law enforcement agency, campus police department pursuant to the provisions of the Oklahoma Campus Security Act, or police department in this state on an annual basis to assist with the enforcement of the provisions of the Uniform Controlled Dangerous Substances Act. Each agency shall promulgate rules, regulations, and procedures for leasing vehicles and firearms. No fully automatic weapons will be subject to the leasing agreement. All firearms leased may be utilized only by ~~C.I.E.E.T.-certified~~ CLEET-certified officers who have received training in the type and class of weapon leased. Every lessee shall be required to submit an annual report to the leasing agency stating the condition of all leased property. A lease agreement may be renewed annually at the option of the leasing agency. Upon termination of a lease agreement, the property shall be returned to the leasing agency for sale or other disposition. All funds derived from lease agreements or other disposition of property no longer useful to law enforcement shall be deposited in the agency's revolving fund, or in the case of the Department of Public Safety, the Department of Public Safety Restricted Revolving Fund, and shall be expended for law enforcement purposes.

L. Before disposing of any property pursuant to subsections C through I of this section, the Oklahoma State Bureau of Narcotics and Dangerous Drugs Control, the Department of Public Safety, the Alcoholic Beverage Laws Enforcement Commission, the Oklahoma State Bureau of Investigation, the Department of Corrections, the Office of the Attorney General, or a district attorney may transfer or donate the property to another state agency, tribal law enforcement agency, or school district for use upon request. In addition to the provisions of this section, the Oklahoma State Bureau of Narcotics and Dangerous Drugs Control may transfer or donate property for any purpose pursuant to Section 2-106.2 of this title. The agencies and any district attorney that are parties to any transfer of property pursuant to this subsection shall enter into written agreements to carry out any such transfer of property. Any such agreement may also provide for the granting of title to any property being transferred as the parties deem appropriate. If the transfer of property is to a school district, a written agreement shall be entered into with the superintendent of the school district. No

weapons may be transferred to a school district except as provided for in subsection K of this section.

SECTION 3. This act shall become effective November 1, 2026.

Passed the Senate the 11th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 29th day of April, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____